Basant N. Singhvi vs State Of Delhi on 17 December, 2004

Author: B.N. Chaturvedi

Bench: B.N. Chaturvedi

JUDGMENT

B.N. Chaturvedi, J.

1. By instant petition, the petitioner, being an accused in jail in case FIR No.395/04 under Sections 120-B/193/406/409/420/467/468/471 IPC registered at PS Connaught Place, seeks his release on bail.

2. Ms. Gurinder Gill, complainant was, on 10th of February, 1998, offered an amount of Singapore $ 2,66,000 by her erstwhile employer, Deutsche Morgan Grenfell, Sinapore, towards full and final settlement of claims on account of termination of her services. She, acting on an advice by the petitioner, accepted that offer in August, 1998 without prejudice to her rights under law. She was to make a claim to the tune of Deutsche Mark 8,00,000 and US $ 25,000 against Deutsche Bank on account of outstandingues and severance benefits from her employer Deutsche Bank. The petitioner took upon himself to fight the case for the complainant in Germany by bringing a civil action in that regard. In that connection, he made eight trips to Germany and one trip to Singapore during the period 2001 and 2002. On account of traveling expenses, hotel stay, engaging a German lawyer, court expenses and his fees, the complainant was made to pay to the petitioner as much as Rs.24,92,373/-. It was eventually discovered that the petitioner, in fact, did not get any such claim filed before the court concerned in Germany, nor he had engaged any lawyer in spite of making so many trips to Germany in that connection.

3. It is complained that the petitioner kept on cheating the complainant by misrepresenting to her in January, 2002 that she had won the case and had been awarded an amount to the tune of Euro.2,53,000. He also informed her in April, 2003 that the Deutsche Bank had deposited the money under the award on 31st of March, 2003 in the treasury of the executing court. On being requested for a copy of the judgment, the petitioner told the complainant that the same was lying with the German Layer, namely, Fradeen Wang Essn but at the same time handed over to her some papers consisting of 40 pages purporting to be her original affidavit, evidence of one Mr. Heinz Fischer of Deutsche Bank, and part of judgment of case No.C-114/2001 filed at BAG(Federal Labour Court) Frankfurt, Germany. These papers were, however, subsequently found to be fabricated ones. The complainant, later, on money not being received, contacted one Mr. J. Fitschen, Global Head of the Corporate and Investment Banking Division, Deutsche Bank who informed her that no case against the bank had actually ever been filed on her behalf and that she was being misled by her lawyer. On being confronted with this information, the petitioner gave the complainant a letter

dated 5.6.2003 enclosing a fabricated fax message therewith from a person called "Fraudeen Wang Essn".

4. In January, 2004, the petitioner told the complainant that the money had reached her German lawyer Fraudeen Wang Essn and informed her that he would be forwarding that money only on his fees amounting to Rs.1,40,000/- being paid first. The petitioner also told her that the cheque on that account was to be in his name. Accordingly, the complainant issued a cheque bearing No.438420 drawn on Uco Bank, Supreme Court Compound New Delhi Branch for Rs.1,20,000/- in the name of the petitioner, which amount as meant to be paid to the aforesaid German lawyer. She also gave him a cheque for Rs.20,000/- from her Citi Bank, Jeevan Bharti, New Delhi Branch Account vide cheque No.315884 in favor of the petitioner towards his own balance fee.

5. On 10th of February, 2004, the petitioner told the complainant that he had received a draft from Germany towards her claim but the same was in his own name. He even showed that draft to the complainant but refused to part with the same. He, finally, handed over that draft for Euro.2,50,000 drawn on Commerzbank Frandfurt AM Main, payable at New Delhi at Amex Bank in favor of himself. Somehow, the complainant got suspicious about the draft and in order to confirm its genuineness, she showed the same to the American Express Bank, Hamilton House, Connaught Place, New Delhi Branch on 24th of February, 2004 and they, after confirmation from Commerz Bank, Frnkfurt, informed her that it was a forged draft. However, they refused to give her confirmation in that regard in writing as the drawee of the draft was someone else, i.e., the petitioner. She confronted the petitioner with the information but he continued to re-assure her by telling that a fresh draft would be sent to her shortly.

6. On 27th of February, 2004, the petitioner gave the complainant a copy of a letter allegedly sent by him to the so called German lawyer under his signature asking him to give instructions to the bank to dispatch another bank draft in favor of complainant directly at her address. On 10th of March, 2004, the petitioner wrote a letter to the complainant stating that the aforesaid draft did not concern her and asked for return of the same. The complainant later learnt that the alleged German lawyer in whose name the petitioner had continued to extort money from her was a fictitious and non-existent person. This was, first, confirmed to her by a lady lawyer in Germany, Dr. Savine Von-Der-Lippe, that there was no lawyer by the name of "Fraudeen Wang Esn" and, subsequently, by email from the Bar Council of Frandfurt (Rechtsanwaltskammer). The phone number of the said German lawyer, as given by the petitioner, was also found to be non-existent. The address of that lawyer also turned out to be a fake one, as gathered from email received by the complainant from Dr. Sorgenfrei, CEO of the Hamburg Port Authority on March 31,2004 Further, Justice Burghard Kret of the BAG(Federal Labour Court of Germany) confirmed by email dated March 3, 2004 that no case by Ref.No.C-114/01 was there in that court. Another email dated March 8, 2004 from Justice Burghard Kret mentioned " everything seems to be forged". On being confronted, the petitioner once again continued to make false promises of securing the money in the name of the complainant.

7. Finally, on 12th of June, 2004, the petitioner, in October gave a cheque for a sum of Rs.1,38,44,160/- towards the amount allegedly received by him in connection with her claim. It was

later discovered that the aforesaid cheque was issued by the petitioner from an account in which he had no money. The complainant, however, presented the cheque to the bank concerned simply to find if the cheque was signed by the petitioner himself and the General Manager of the Bank confirmed the same and in token on such confirmation, initialled the cheque.

8. Mr. D.C. Mathur, learned Senior Advocate, appearing for the petitioner, argued that the complainant is running an establishment in the name and style of "Gurinder Gill and Associate(GGA)", a firm providing advisory services in the area of investment, banking, valuation, due diligence and legal policy and the petitioner was inducted therein by her only as an associate. He referred to a copy of the profile of the firm(Annexure-`E') to support his contention in this regard. He contended that the petitioner was never engaged by the complainant as her lawyer, nor he ever engaged Mr. Fraudeen Wang Essn, a German lawyer, to pursue her claim there in Germany. He rather contended that it was the complainant herself who had directly negotiated with and executed power of attorney in the name of Mr. Fraudeen Wang Essn and also met and interacted with him during her visit to Germany in the year 2001. The petitioner had, according to the learned Senior Advocate, simply, on being requested by the complainant, briefed and assisted the said German lawyer. He himself did not suggest his name to the complainant, nor had any knowledge about him. The petitioner denies having received and handed over the alleged forged draft to the complainant. Regarding the cheque for s.1,38,44,160/-, according to the petitioner, the same was issued by him on a request by the complainant on her telling him that she simply intended to show the same to her customers. It was submitted that the petitioner is in jail since 10th of August , 2004 and in the event of his release, there is no possibility of his tampering with evidence or being not available for trial. He argued that on facts, no offence of cheating, forgery and criminal breach of trust are made out against the petitioner. it was contended that since the money had never come to the hands of the complainant, there could be no entrustment of the same by her to the petitioner making out a case of criminal breach of trust. On the allegation that no lawyer by the name of Mr. Fraudeen Wang Essn was found to be there, learned Senior Advocate, contended that no enquiries from all the concerned quarters as indicated in the communications received by the complainant, were made and, therefore, the complainant could not claim to be sure of there being no lawyer by that name.

9. Learned APP, opposing the bail plea, pointed out that apart from the present case, the petitioner is involved in two other similar cases of cheating, forgery and criminal breach of trust being FIR No.47/93 under Sections 193/196/420/467/468/471/473/34 IPC, PS Bhadarkali, District Nasik, Maharashtra, and FIR No.448/2004 under Sections 420/406/467/468/471 IPC, PS Sarojini Nagar, New Delhi. Learned APP pointed out that the case FIR No.47/03 relates to a fraud committed by the three Junior Engineers of Nasik Zilaparishad and the petitioner had in that case supplied a forged copy of Supreme Court's judgment purportedly relating to reinstatement of R.B. Bhoi, one of the accused in that matter. Case FIR No.448/2004, added the learned APP, pertains to cheating of a client by the petitioner to the extent of Rs.5 lacs, by misrepresenting to the victim that he would be filing and pursing a compensation case on his behalf in a Swiss court at Geneva. The petitioner allegedly supplied fake documents related to Swiss Advocates/Court to his client without any case being actually filed there in Geneva or elsewhere.

10. Learned counsel for the petitioner pointed out that the case FIR No.448/2004 was registered while petitioner was in custody in the present case and that the same stands settled on full payment of the amount involved therein being made by the petitioner. In respect of other case, it was stated that the petitioner is on bail and the same is pending at summoning stage.

11. According to the petitioner, he made eight trips to Germany on the request of the complainant to brief and assist the German lawyer, engaged directly by the complainant herself. Even if these trips were made just to brief and assist the German lawyer to prosecute the complainant's claim, he would have, in normal course, come to know of the pendency of the matter before the concerned German court. In response to certain queries made from Deutsche Bank, a letter dated 22.9.2004 addressed to the Assistant Commissioner of Police(FNC), EOW, Crime Branch, New Delhi reveals that no claim had, in fact, ever been filed on behalf of the complainant against the Deutsche Bank in any German Court. In view of this information, there remains no uncertainty with respect to the fact that no claim had ever been filed on behalf of the complainant in any German court against the Deutsche Bank and, in the circumstances, it tends to travel beyond comprehension that the petitioner had to visit Germany at the expenses of the complainant as many as on eight occasions to brief and assist the aforesaid German lawyer in connection with a so-called claim on behalf of complainant which at no point of time was filed or pending before any German court. No doubt, the complainant admits to have made a personal visit to Frankfurt, Germany, in the company of the petitioner once in the year 2001, but, according to her, she remained confined to her hotel room only and it was the petitioner alone who ventured out of the hotel to interact with the said local German lawyer. Apparently, there appears no reason to discard the complainant's version as if the complainant herself would have had engaged the aforesaid local German lawyer, there could be no reason that she would have fancie later a meaningless exercise of ascertaining if any lawyer by the name of Fraudeen Wang Essn was actually there. Further, if she would have been directly interacting with that local German lawyer, as claimed by the learned Senior Advocate for the petitioner, the complainant could not be expected to be that unwise and foolhardy that she would have continued to incur huge expenses on frequent trips of the petitoner to Germany knowing it well that no claim was actually pending there before any German court. Some of the letters, purported to have been written by the petitioner to the complainant and aforesaid German lawyer, appear to indicate that it was the petitioner, who had been managing the whole show to the exclusion of the complainant. The petitioner does not appear to dispute his signatures on the purported letters issued to the complainant and the so-called local German lawyer but, he appears to be trying for a space by advancing a plea in one of his letters to the complainant that he had signed some blank papers while rushing to the court.

12. The specimen handwriting and signature of the petitioner, which were obtained during the course of investigation, have been referred along with the questioned documents to a handwriting expert, and a report in that regard is awaited, though the chargesheet has already been filed.

13. The petitioner had allegedly, in order to convince the complainant that her claim had been granted by the German court, handed over to her a forged draft for Euro.2,53,000/-, which, on enquiry from the concerned Bank, has been found to be not a genuine one.

14. Though the petitioner has denied that he had ever handed over the aforesaid draft for Euro.2,53,000/- to the complainant, issuance of admitted cheque for Rs.1,38,44,160/-, being the amount in lieu of aforesaid forged draft, apparently, supports the complainant's version in that regard.

15. It is noticed that the petitioner by allegedly misrepresenting to the complainant that the amount would be made available by the local German lawyer only on his fees being paid first, collected an amount of Rs.1,20,000/- on account of his fees and in view of there being no German lawyer by the name of Fraudeen Wang Essn, the same was misappropriated by him to his personal use.

16. Besides the case on hand, the petitioner is noticed to have been involved in two other similar cases of cheating, forgery and criminal misappropriation etc. A complete digression from the path which the petitioner was expected to tread being a practicing advocate, is thus on view. Where one's saner part goes hind, yielding space to criminal instincts, such a person becomes a threat to social order. In that situation, to make him stay away from the society would perhaps appear to be a preferable option in the larger interest of the society. Petitioner's case is no different. In the facts and circumstances, submissions made by learned Senior Advocate, appearing for the petitioner fall short of being persuasive enough to justify release of the petitioner on bail. The prayer in this regard is, therefore, declined and the petition is dismissed.

17. Observations made herein are restricted to disposal of bail petition with no bearing on merits of the case.